

Jasdeep Kaur vs Amit Dhillon And Anr on 21 May, 2026

TA-1243-2025

2025 (O&M)

- 1 -

IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH

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TA-1243

1243-2025 (O&M)

Date of Decision: 21.05.2026

Jasdeep Kaur

....Petitioner

Versus

Amit Dhillon and another

.... Respondents

CORAM: HON'BLE MS. JUSTICE NIDHI GUPTA

Present: - Mr. Ashu Rana, Advocate for the petitioner.

Mr. Vinay Puri, Advocate for respondent No. 1.

NIDHI GUPTA, J. (ORAL)

CM-10441 10441-CII-2026 Application is allowed, as prayed for. Reply on behalf of contesting respondent No. 1 filed along with the application is taken on record. TA-1243-2025

1. By way of filing the present petition, the petitioner petitioner-wife is seeking transfer of petition filed by respondent No. 1-husband under Section 12(1)(C) of the Hindu Marriage Act, 1955 Act, 1955 (for short-'the Act') bearing No. DMC/932/2023 (Annexure P--4) titled as 'Sh. Amit Dhillon vs. Jasdeep Kaur and another' another pending before the learned Family Court, Jalandhar to a Court of competent jurisdiction at Garhshankar, Sessions Division, Hoshiarpur.

2. Learned counsel for the petitioner petitioner, inter alia, submits that:-

i) Marriage of the petitioner with the respondent was solemnized on 28.03.2028.03.2016. It was the second marriage of the petitioner.

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ii) One son was born out of the said wedlock on 03.06.2017 who is presently in the care and custody of the petitioner-mother.

mother.

iii) Due to matrimonial discord the parties are living separately since March, 2023 2023.

iv) The petitioner has no source of income and is fully dependent upon her parents.

v) There are 02 cases filed by the petitioner and 01
filed by the respondent
respondent-husband pen

adjudication before the Courts at Garhshankar, Sessions Division, Hoshiarpur Hoshiarpur, in some of which the respondent-husband husband is not putting in appearance, details of which are as under:

under:-

(a) COMI/15/2023 under Sections 313, 323, 498 498-

A, 406 and 342 IPC pending before the learned Judicial Magistrate Ist Class, Garhshankar;

(b) Complaint filed by the petitioner under Section 12 of the provisions of the Protection of Women from Domestic Violence Act, 2005 bearing COMA/7/2023.

(c) Petition bearing No. GW/11/2025 filed by the respondent-husband husband under Sections 7,10, 12 of the Guardianan and Wards Act, is pending adjudication before the learned Family Court at Hoshiarpur.

vi) The distance between the place of residence of the petitioner at Garhshankar and place of proceedings at Jalandhar is about 61 kilometers on one side. As such, it is difficult for her to undertake frequent travel for the case from Garhshankar to Jalandhar as, the petitioner's father and brother(s brother(s) are working. Thus, there is no one in the family to accompany her from Garhshankar to Jalandhar to attend the Court proceedings.

3. It is accordingly, prayed that the present petition may be allowed and petition DMC/932/2023 (Annexure P P-4) titled as 'Sh. Amit Dhillon vs. Jasdeep Kaur and another' pending before the learned TA-1243-2025 2025 (O&M) -3- Family Court, Court, Jalandhar be transferred to a Court of competent jurisdiction at Garhshankar, Sessions Division, Hoshiarpur.

4. Per Contra, learned counsel appearing for the respondent- husband vehemently opposes the submissions of learned counsel for the petitioner-wife wife and submits that the present petition bearing No. DMC/ 932/2023 (Annexure P-4) P 4) has been filed by the respondent in the year 2023 and the petitioner has put in appearance in the said petition on 22.08.2023; and the present petition is at the stage of plaintiff's evidence. Learned counsel for the respondent relies upon a judgment of Hon'ble the Supreme Court in Abhilasha Gupta vs. Harimohan Gupta: Law Finder Doc Id # 1888057, to submit that where the trial is at the advance stage, transfer petition petition filed by the wife is not liable to be allowed.

5. No other argument has been made on behalf of the parties. I have heard learned counsel for the parties and carefully gone through the case file.

6. I find no merit in the submissions advanced on behalf of the respondent. The judgment relied upon by learned counsel for the respondent is distinguishable on the facts and law. It is not disputed by learned counsel for the respondent that the petitioner is single handedly taking care of the minor son born out of the wedlock of the parties. It is also not disputed that the petitioner has no independent source of income.

7. Besides the facts as noticed hereinabove in para 2, which constitute sufficient grounds for transfer, the legal position in such like cases is well established. In this regard, judgment of the Hon'ble Supreme Court rendered in N.C.V. Aishwarya vs A.S. SaravanaKarthik Sha,"

TA-1243-2025 2025 (O&M) -4- 627 is notable, wherein the Hon'ble Supreme Court 2022 Live Law (SC) 627, has held as under:-

under:

"9. The cardinal principle for exercise of power under section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial imonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socioeconomic paradigm in the Indian society, ociety, generally, it is the wife's convenience which must be looked at while considering transfer.

10. Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried together by the same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions."

8. Further reliance can be placed upon the judgments in Sumita Singh vs Kumar Sanjay, 2002 SC 396 and Rajani Kishor Pardeshi vs 237, wherein the Hon'ble Kishor Babulal Pardeshi, 2005(12) SCC 237 Supreme Court has observed that "while deciding the transfer application, the Courts are required to give more weightage and consideration to the convenience of the female litigants and transfer of legal proceedings from one Court to another should ordinarily be allowed, taking into consideration their convenience and the Courts should desist from putting female litigants un under undue hardships."

9. Even this Court in number of cases has followed the aforesaid principle of law. Accordingly, it is well settled that while considering the transfer of a matrimonial dispute/case dispute/case, at the instance of TA-1243-2025 2025 (O&M) -5- the wife, the Court is to consider consider the family condition of the wife, the custody of the minor child, economic condition of the wife, her physical health and earning capacity of the husband and most important the convenience of the wife i.e. she cannot travel alone without assistance of a male member of her family, connectivity of the place to and fro from her place of residence as well as bearing of the litigation charges and travelling expenses.

10. In view of the judgments i.e. Sumita Singh's case (supra), Rajani Kishor Pardeshi's case (supra) and N.C.V. Aishwarya's case (supra) passed by the Hon'ble Supreme Court, this Court deems it appropriate to allow the present petition, subject to the following conditions:

conditions:-

- a) The petition bearing No. DMC/932/2023 (Annexure P-4) titled as 'Sh. h. Amit Dhillon vs. Jasdeep Kaur and another' pending before the learned Family Court, Jalandhar to a Court of competent jurisdiction at Garhshankar, Sessions Division, Hoshiarpur.
 - b) The learned District Judge, Jalandhar is directed to transfer complete record pertaining to the aforesaid case to District Judge, Hoshiarpur Hoshiarpur.
 - c) The parties are directed to appear before the District Judge, Hoshiarpur on 24.06.2026.
 - d) The District Judge, Hoshiarpur will assign the said petition to the Court of competent jurisdiction.
11. The concerned Court at Hoshiarpur will make all endeavour to refer the case before the Mediation and Conciliation Centre for exploring the possibility of some amicable settlement between the parties.

12. The Court concerned, where the litigation is pending between the parties, will accommodate them with one date in one calendar month.

13. I am supported by the decisions rendered by a Co Co-ordinate Bench of this Court in TA No. 1315/2022, Rohini Arora v Nitin Talwar; TA No. 1322 of 2022, Jaswinder Kaur v Gurvinderjeet Singh;; and TA No. 1323 of 2022, Usha Rani v Karmajit Singh.

14. The present petition stands disposed of, in the above terms.

15. Pending application(s), if any, shall also stand disposed of.

21.05.2026
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(NIDHI GUPTA)
JUDGE

Whether speaking/reasoned Yes/No Whether Reportable Yes/No